

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

JONATHAN RODRIGUEZ,

Respondent

) Case Number: FCS-23-356632

) Hearing Date: May 19, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JUDGE KATHLEEN DIESMAN

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, SPOUSAL OR PARTNER
SUPPORT; REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, SPOUSAL OR
PARTNER SUPPORT *FILED DEC-18-2025*

TENTATIVE RULING

Custody and Visitation

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

Financial Matters

Respondent Jonathan Rodriguez's request for modification of child support (set forth in his 12/18/25 Request for Order) is CONTINUED to 6/23/26 at 8:30 AM in Dept. 414 as the Department of Child Support Services (DCSS) is a party to this action; all support matters in DCSS cases must be heard in Dept. 414.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MATTHEW RYAN GATTIS,

Petitioner

VS.

AMANDA LI,

Respondent

) Case Number: FMS-25-387550

) Hearing Date: May 19, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JUDGE KATHLEEN DIESMAN

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CHANELYA THOMAS,

Petitioner

VS.

JEROME TAYLOR,

Respondent

) Case Number: FLD-21-396848

) Hearing Date: May 19, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JUDGE KATHLEEN DIESMAN

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TIM NGO,	)	Case Number: FDI-14-780798
	)	
Petitioner	)	Hearing Date: May 19, 2026
	)	
VS.	)	Hearing Time: 9:00 AM
	)	
LI XU,	)	Department: 403
	)	
Respondent	)	Presiding: JUDGE KATHLEEN DIESMAN
	)	

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),
ORDER SHORTENING TIME

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MICHELLE K DIAMOND,

Petitioner

VS.

LEE S DIAMOND,

Respondent

) Case Number: FDI-21-795339

) Hearing Date: May 19, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JUDGE KATHLEEN DIESMAN

REQUEST FOR ORDER RE: DIVISION OF PERSONAL PROPERTY IN FAMILY RESIDENCE

TENTATIVE RULING

Petitioner Michelle K. Diamond's Request to Reschedule Hearing due to counsel unavailability is
GRANTED. The matter is hereby CONTINUED 7/9/26 at 9 AM in Dept. 403. **No appearances are
required on 5/19/26.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ERICA PLAM,

Petitioner

VS.

ERIC HUDSON PLAM,

Respondent

) Case Number: FDI-22-796258

) Hearing Date: May 19, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JUDGE KATHLEEN DIESMAN

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, ORDER SHORTENING TIME;
SEE #7 OTHER ORDERS REQUESTED; REQUEST FOR ORDER: DISTRIBUTION OF IOLTA
FUNDS; SANCTIONS PURSUANT TO FC SS 271 & 110; OTHER ORDERS AND SEE #7

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Erica Plam (Mother) and Respondent Eric Hudson Plam (Father).
- 2) On 9/5/25, the Court ordered the immediate reappraisal and sale of the San Francisco property located at 1850 10th Avenue in San Francisco, California (against Mother's request to delay the sale of the home for 10 months), with additional orders regarding the sale process, expenses incurred to effectuate the sale, carrying costs, and sale proceeds. The Court reserved jurisdiction over the sale of the home. See Findings and Order After Hearing (FOAH) filed 9/5/25.
- 3) On 10/7/25, the Court issued a Final Statement of Decision, which includes disposition of the San Francisco property and the Reno property (located at 712 S. Arlington Avenue Reno, Nevada) and other orders related to property division. The Court ordered, in pertinent part:
 - a. Regarding the San Francisco property, the Court ordered that the net sale proceeds of the home be divided equally between the parties minus Family Code section 2640

reimbursements. The Court also stated that expenses related to the sale of the home will be divided equally between the parties. See page 6-7.

- b. “*Epstein credits*” are to be paid from the community. (*In re Marriage of Jefferies* (1991) 228Cal.App.3d 548.) See page 8.
 - c. The Court exercised its discretionary authority and awarded \$25,000 of *Epstein credits* to Father for “reimbursement of separate property mortgage payments, property tax payments, and home insurance for the San Francisco home post separation during the time that [Mother] had exclusive use of the residence.” The Court declined to award *Watts charges* to either party. See page 9.
 - d. Regarding the Jeep vehicle purchased in 2019, the Court declined to issue *Epstein credits* or *Watts charges*. The Court awarded proceeds of a lemon law settlement to Father and ordered Mother to repay Father \$25,201, which she received from the lemon law settlement. See page 10.
 - e. Regarding business taxes, the Court ordered Mother to pay Father \$6,000 for payment of business taxes. See page 10.
- 4) At the prior 2/17/26 hearing on Father’s 1/7/26 Ex Parte Request for Order, the Court set a review hearing on 5/19/26 stating, “The Court reserves jurisdiction over the sale of the home including division of the sale proceeds consistent with the Court’s 9/5/25 order and further order of the Court.” See FOAH filed 3/3/26.
 - 5) At the prior 3/10/26 hearing, the Court disbursed a portion of the net sale proceeds of the San Francisco property to the parties as follows: (a) \$44,230.48 to Father off the top at closing and (b) \$50,000 to each party. See FOAH filed 4/2/26.
 - 6) On 4/14/26, Father filed a Request for Order seeking disbursement of funds from the net sale proceeds of the San Francisco property.
 - 7) At the prior 4/23/26 hearing, the Court ordered: (a) Father agreed to buy out Mother’s interest in the Reno property for \$170,000; (b) each party shall receive \$150,000 of the net sale proceeds of the San Francisco property; (c) Father’s \$150,000 distribution shall be held until Mother receives the buyout payment for the Reno property; and (d) the remaining approximately \$106,632 in funds from the net sale proceeds of the San Francisco property shall remain in counsel for

Mother's client trust account not be distributed without written agreement or further court order.
See 4/23/26 Minute Order.

8) On 5/6/26, Mother filed a Responsive Declaration in opposition to Father's 4/14/26 Request for Order.

9) On 5/12/26, Father filed a Reply Declaration reiterating his requests related to disbursement of funds from the net sale proceeds of the San Francisco property.

B. Findings and Order

1) It is undisputed that approximately \$106,632.64 of the net sale proceeds of the San Francisco property remains in counsel for Mother's client trust account (i.e., Mother acknowledges this amount in her 5/6/26 Responsive Declaration and Father acknowledges this amount in his 5/12/26 Reply Declaration), which the Court acknowledged and ordered not be distributed without written agreement or further court order. See 4/23/26 Minute Order.

2) Based on the pleadings, the Court finds the parties do not agree on how the remaining funds should be distributed; therefore, the Court finds good cause to rule of Father's requests (set forth in his 4/14/26 Request for Order) and distribute the remaining net sale proceeds of the San Francisco property in accordance with the Final Statement of Decision issued 10/7/25 as follows:

3) Father's request for \$25,000 in *Epstein* credits is GRANTED, the full balance of which shall be paid from the undivided funds. This leaves \$81,632.64 for equal distribution between the parties ($\$106,632.64 - \$25,000 = \$81,632.64$) or approximately \$40,816.32 awarded to each party, subject to the orders below.

4) Father's request for \$25,201 in Jeep settlement refund is GRANTED, the full balance of which shall be paid from Mother's share of the funds.

5) Father's request for \$6,000 in business taxes is GRANTED, the full balance of which shall be paid from Mother's share of the funds.

6) Father's request for \$22,115.24 for foreclosure cure reallocation is DENIED as Father was previously reimbursed \$44,230.48 from the San Francisco home sale proceeds for curing the mortgage default and preventing foreclosure. See FOAH filed 4/2/26.

7) Father's request for \$2,785.04 in reimbursement for unauthorized home repairs is DENIED as the Court ordered the cost of home repairs divided equally.

1 8) Father's request for \$440.40 in mortgage late fee charges and \$3,843.36 in mortgage delay
2 damages is DENIED.

3 9) Father's request for reimbursement of \$1,663.10 for a Bank of America Cashier Check issued in
4 his name only is GRANTED, the full balance of which shall be paid from Mother's share of the
5 funds.

6 10) Father's request for \$18,784.79 in attorney's fees sanctions and additional request for \$5,000 in
7 fiduciary-duty sanctions is DENIED.

8 11) Counsel for Mother shall distribute the funds in accordance with the orders made herein within 60
9 days of this hearing.

10 12) In so far as there remain issues related to the exchange of personal property; the parties shall
11 follow the process ordered at the prior 4/23/26 hearing. See 4/23/26 Minute Order.

12 13) Counsel for Mother shall prepare the Findings and Order After Hearing.

13 14) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
14 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
15 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
16 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
17 proposed order after hearing directly to the court. Failure to submit the order after hearing within
18 10 days may allow the other party to prepare a proposed order and submit it to the court in
19 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALEJANDRO PALMA,

Petitioner

VS.

SANDRA ROSALIA PALMA,

Respondent

) Case Number: FDI-24-799388

) Hearing Date: May 19, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JUDGE KATHLEEN DIESMAN

REQUEST FOR ORDER RE: BIFURCATION OF MARITAL STATUS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Alejandro Palma and Respondent Sandra Rosalia Palma.
- 2) On 3/19/26, Petitioner filed a Request for Order seeking bifurcation of trial and termination of marital status.
- 3) On 3/9/26, Petitioner filed a Memorandum of Points and Authorities.
- 4) On 4/16/26, Petitioner filed a Proof of Service by Mail indicating service was effectuated on 3/30/26.
- 5) Respondent did not file a Responsive Declaration.
- 6) The Court notes Petitioner filed a Declaration Regarding Service of Declaration of Disclosure stating that Petitioner's Preliminary Declaration of Disclosure was served on the other party by mail on 12/22/25.

B. Findings and Order

- 1) Public policy favors bifurcation and termination of marital status.

- 1 2) The Court finds that Petitioner's request for bifurcation of trial and termination of marital
2 status is unopposed.
- 3 3) However, Petitioner did not submit form FL-315 (Request for Separate Trial) with the Request
4 for Order, which is a mandatory form (i.e., required for the Court to adjudicate this issue).
- 5 4) As such, this matter is **continued to 7/2/26 at 9 AM in Dept. 403.**
- 6 5) Petitioner shall file and serve form FL-315 (Request for Separate Trial) at least 10 calendar days
7 in advance of the next hearing.
- 8 6) Petitioner's attorney shall prepare the Findings and Order After Hearing.
- 9 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
10 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
11 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
12 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
13 proposed order after hearing directly to the court. Failure to submit the order after hearing within
14 10 days may allow the other party to prepare a proposed order and submit it to the court in
15 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LILY MADELEINE BOWLES LEO,	)	Case Number: FDI-25-801208
Petitioner	)	Hearing Date: May 19, 2026
VS.	)	Hearing Time: 9:00 AM
AUSTIN JACK LEO,	)	Department: 403
Respondent	)	Presiding: JUDGE KATHLEEN DIESMAN

REQUEST FOR ORDER: CHANGE OF CHILD SUPPORT

TENTATIVE RULING

The matter was continued to 6/16/26 by Stipulation and Order filed 5/12/26. **No appearances are required on 5/19/26.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ABIGAIL RODRIGUEZ MONTECINO,

Petitioner

VS.

MARK YAP MONTECINO,

Respondent

) Case Number: FDI-25-801374

) Hearing Date: May 19, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JUDGE KATHLEEN DIESMAN

REQUEST FOR ORDER RE: SPOUSAL OR PARTNER SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Abigail Rodriguez Montecino and Respondent Mark Yap Montecino. They married on 5/30/17. Per the Petition filed 5/9/25, Petitioner contends the parties separated on 12/4/24, for a marriage of 7 years and 6 months. Per the Response filed 6/20/25, Respondent contends the parties separated on 1/9/22, for a marriage of 4 years and 7 months. The parties have no minor children in common.
- 2) On 10/8/25, Petitioner filed a Request for Order filed seeking \$3,200 in temporary spousal support. The matter was set for hearing on 11/20/25.
- 3) On 11/17/25, Petitioner submitted a Request to Enter Default and a proposed True Default Judgment in this matter, but Respondent filed a Response to the Petition on 6/20/25, which precludes entry of his default.
- 4) At the prior 11/20/25 hearing (see Findings and Order After Hearing (FOAH) filed 12/11/25), the Court continued the hearing to 3/3/26 because Petitioner failed to file an Income and Expense

1 Declaration (form FL-150) and there was no Proof of Service on file for Petitioner's Request for
2 Order. As such, the Court ordered Petitioner to:

- 3 a. File and serve an Income and Expense Declaration (form FL-150);
 - 4 b. Have Respondent served with her Request for Order filed 10/8/25, Income and Expense
5 Declaration (form FL-150), a blank Responsive Declaration (form FL-320), a copy of the
6 Tentative Ruling Instructions, and a copy of the Findings and Order After Hearing for the
7 11/20/25 hearing date; and
 - 8 c. File a Proof of Service evidencing compliance with the orders set forth above.
- 9 5) On 1/20/26, Petitioner filed an Income and Expense Declaration (form FL-150) indicating she
10 earns an average monthly salary of \$2,729.30, pays \$164.91 in health insurance premiums, pays
11 \$2,985 in average monthly expenses, and estimates Respondent earns \$13,750 in average
12 monthly income based on "incoming checks from portal healthcare."
- 13 6) On 2/27/26, Petitioner filed an Affidavit of Unsuccessful Service attached to which is a
14 Declaration of Diligence.
- 15 7) At the prior 3/3/26 hearing, Petitioner appeared in pro per, and Respondent did not appear.
16 Petitioner advised the Court she filed a Proof of Service on 2/27/26 and requested a continuance.
17 Accordingly, the Court made a finding of good cause to continue the matter to 5/19/26. Petitioner
18 was ordered to serve the continuance order on Respondent via mail as required by Code of Civil
19 Procedure section 1005(b).
- 20 8) On 4/11/26, the Court filed a Proof of Service by Mail indicating the FOAH on 3/3/26 was mailed
21 to both parties on 3/11/26. The Court served Respondent at the address listed on his Response and
22 Request for Dissolution.
- 23 9) On 4/22/26, Petitioner filed a Proof of Service by Mail indicating she served the following
24 documents on Respondent by mail on 4/14/26: (a) Income and Expense Declaration (form FL-
25 150); (b) blank Responsive Declaration (FL-320); (c) Request for Order (FL-300) and Tentative
26 Ruling Instructions; and (d) FOAH on 11/20/25.
- 27 10) Respondent did not file a Responsive Declaration or Income and Expense Declaration.

28 **B. Findings and Order**
29

- 1) The Court finds proper service was effectuated – i.e., Respondent has notice of the 5/19/26 hearing – based on the Court’s 4/11/26 Proof of Service and Petitioner’s 4/22/26 Proof of Service.
- 2) Given that Respondent failed to file a Responsive Declaration and Income and Expense Declaration, the Court further finds good cause to: (a) GRANT Petitioner’s unopposed request for temporary spousal support; and (b) use Petitioner’s estimation for Respondent’s income as listed on her Income and Expense Declaration, which she signed under penalty of perjury (\$13,750 in average monthly income based on “incoming checks from portal healthcare).
- 3) As such, in accordance with the XSpouse report attached hereto and incorporated herein, Respondent shall pay Petitioner \$946 in guideline temporary monthly spousal support by the 1st of every month, effective 10/8/25 (i.e., the date on which Petitioner filed her Request for Order). The first payment shall commence on 6/1/26.
- 4) The XSpouse report is based on the following findings:
 - a. Per Petitioner’s pay stubs attached to her Income and Expense Declaration:
 - i. Petitioner earns an average monthly salary of \$7,732.53 (\$3,568.86 gross biweekly).
 - ii. Petitioner pays \$313.62 in monthly health insurance premiums (\$144.45 biweekly).
 - iii. Petitioner pays \$231.98 in retirement (\$107.07 biweekly).
 - b. Per section 4 of Petitioner’s Income and Expense Declaration, Respondent earns \$13,750 in average monthly income based on “incoming checks from portal healthcare.”
- 5) Respondent owes Petitioner \$7,323 in temporary monthly spousal support arrears for the period of 10/8/25 – 5/31/26 (\$701 for October 2025 + \$6,622 for November 2025 – May 2026 (\$946 x 7). Respondent shall pay an additional \$250 per month until this balance is paid in full.
- 6) The Court reserves jurisdiction over the spousal support orders made herein retroactive to 10/8/25.
- 7) The Court will prepare the Findings and Order After Hearing.

2026**Fixed Shares**

	Husband	Wife
Number of children	0	0
Percent time with NCP	0.00%	0.00%
Filing status	MFSIN	MFSIN
Number of exemptions	1	1
Wages and salary	13750	7732
Self employed income	0	0
Other taxable income	0	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	0	231
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	0	313
Other medical expenses	0	0
Property tax expenses	0	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	0	0

Xspouse 2026-1-CA**Monthly Figures****2026****GUIDELINE****Nets (adjusted)**

Husband	9215
Wife	5480
Total	14695
Support	
Addons	0
Guideln CS	0
S.Clara SS	946
Total	946
-	

Settings changed**Proposed****Tactic 9**

CS	0
SS	946
Total	946
Saving	0
Releases	0

Monthly Figures**Cash Flow****Guideline Proposed**

Combined net spendable	14695	14695
Percent change	0%	0%

Husband

Payment cost/benefit	-946	-946
Net spendable income	8269	8269
Change from guideline	0	0
% of combined spendable	56%	56%
% of saving over guideline	0%	0%
Total taxes	4535	4535
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	8955	8955

Wife

Payment cost/benefit	946	946
Net spendable income	6426	6426
Change from guideline	0	0
% of combined spendable	44%	44%
% of saving over guideline	0%	0%
Total taxes	1939	1939
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	5270	5270

Husband pays Guideline SS, Proposed SS

FC 4055 checking: **ON****Per Child Information**

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		0 - 0	0	0	0 Husband	0 Husband	0 Husband

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ELIZABETH ABAUNZA,

Petitioner

VS.

HERMES ABAUNZA,

Respondent

) Case Number: FDI-25-801584

) Hearing Date: May 19, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JUDGE KATHLEEN DIESMAN

REVIEW OF CHILD SUPPORT & PRIVATE SCHOOL PAYMENT (SEE STIP FILED 11/24/25)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Elizabeth Abaunza and Respondent Hermes Abaunza.
- 2) On 11/21/25, the parties entered into a Stipulation and Order, which set a review hearing regarding child support and private school payment on 3/5/26.
- 3) On 3/2/26, the parties filed a Stipulation and Order to Continue Hearing; the review hearing was continued to 5/19/26.
- 4) On 3/2/26, Petitioner filed an updated Income and Expense Declaration.
- 5) Neither party filed an update declaration advising the Court of any change in circumstances or orders they seek.

B. Findings and Order

- 1) Given that neither party filed an update declaration advising the Court of any change in circumstances or orders they seek, the Court finds good cause to VACATE the 5/19/26 review hearing.

- 2) Either party may file a new Request for Order should they have any legal basis to modify the 11/21/25 Stipulation and Order.
- 3) The Court will prepare the Findings and Order After Hearing.